

KMVTECH EDUCATION**HRL1 · Module 7****Selected rights**

Lesson: Life, liberty, equality, expression

Student Lesson Notes

Study with the online lessons. Prefer primary sources (Constitution, statutes, treaties, cases). © KMVTECH Education · September 2026.

1. CORE IDEA

The right to life (Art. 22) protects against arbitrary deprivation and supports positive duties of investigation and prevention. Liberty and security of the person (Art. 23) regulate arrest, detention and fair-trial timelines.

Equality and non-discrimination (Art. 21) prohibit unfair differentiation on listed and analogous grounds; affirmative action is expressly permitted. Freedom of expression (Art. 29) is foundational to democracy but subject to structured limitation.

These rights interact: discriminatory detention or silencing of critics often engages multiple provisions simultaneously.

- Case law has developed detailed tests for arbitrariness, reasonable suspicion, and the scope of protected expression.

2. DETAILED RULES AND APPLICATION

Example: prolonged detention without charge engages liberty, fair hearing and potentially equality arguments; expression cases often turn on the proportionality of criminal or regulatory sanctions.

Plead the cluster of rights that the facts engage; courts look at the cumulative effect.

3. UGANDA / PRACTICE, METHOD AND TRAPS

Ugandan jurisprudence on bail, habeas corpus, hate-speech limits and equality has matured. Comparative African and Strasbourg/UN materials remain persuasive.

Exam trap: analysing expression cases solely under 'public order' without the full Article 43 proportionality inquiry, or treating equality as formal rather than substantive.

Method: map facts onto each potentially engaged right → apply specific constitutional tests → integrate limitation analysis → seek cumulative remedies.

Selected rights illustrate the general enforcement and limitation doctrines.

SELF-TEST QUESTIONS

Attempt these before the platform practice quiz.

1. What positive duties attach to the right to life?
2. Key protections under Article 23?
3. What does Article 21 protect and permit?
4. How is freedom of expression limited?
5. Why plead multiple rights together?
6. Give one common fact pattern that engages several rights.

Exam tip: Cluster rights; apply specific tests; demand cumulative relief.

CHECKLIST BEFORE YOU LEAVE THIS LESSON

- I can state the main instrument(s) or Cap number.
- I can explain the core rule in my own words.
- I can apply the rule to a short Uganda / regional fact pattern.
- I know the common exam trap for this topic.
- I know how this lesson links to the next module.

Next step: Complete the online practice quiz for this lesson, then continue on the platform.